



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles Bloom, Director of Planning and Development
Kylie Dorr, DDA Administrator
Subject: DDA District Expansion
Date: August 12, 2024

Background:

The item for consideration is a Downtown Development District Expansion. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 08/12/2024
- Public Services Committee 08/20/2024
- Second reading 08/26/2024
- Public Services Committee 09/04/2024
- Third and final reading 09/09/2024

The Downtown Development Authority Board Recommendation:

The DDA Board has not considered this item prior to the packet being submitted, an update will be provided to the Governing Body at the Council meeting.

The DDA Staff Report is attached and has not been changed.

Attachments:

1. Ordinance
2. DDA Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING SECTION 2.76.040, DESIGNATION OF DOWNTOWN DEVELOPMENT DISTRICT, OF CHAPTER 2.76, DOWNTOWN DEVELOPMENT AUTHORITY, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, TO EXPAND THE DOWNTOWN DEVELOPMENT DISTRICT.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 2.76.040, Designation of downtown development district, of Chapter 2.76, Downtown Development Authority, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, is amended as follows:

2.76.040 Designation of downtown development district.

The boundaries of the downtown development district within which the authority shall exercise its powers shall be as follows:

- A. ~~Northern portion~~ Area One: ~~commencing~~ Commencing at a point described as the intersection of the ~~west-east~~ right-of-way of House Avenue and the ~~south-north~~ right-of-way of 22nd Street; thence in a southwesterly direction along the ~~south-north~~ right-of-way line to a point intersecting with the ~~east-west~~ right-of-way of Snyder Avenue; thence in a southeasterly direction along the ~~east-west~~ right-of-way line and along the extension of that line to a point which intersects with a line that is 17.2 feet parallel to the center line of the north most rail of the Union Pacific Railroad; thence in a northeasterly direction along said parallel line to a point intersecting with the extension of the ~~west-east~~ right-of-way line of House Avenue; thence in a northwesterly direction along the ~~west-east~~ right-of-way line of House Avenue to the point of beginning.
- B. ~~Southern portion~~ Area Two: ~~commencing~~ Commencing at a point described as the intersection of the ~~west-east~~ right-of-way line of Central Avenue and the ~~south-north~~ right-of-way line of 11th Street; thence southwesterly along the ~~south-north~~ right-of-way of 11th Street to a point intersecting the ~~east-west~~ right-of-way line of Capitol Avenue; thence southeasterly along the ~~east-west~~ right-of-way line and that line extends to a point intersecting the constructed center line of Deming Drive; thence southeasterly along the center line of Deming Drive to the extension of the right-of-way line of Central Avenue; thence northwesterly along the ~~west-east~~ right-of-way line of Central Avenue to the point of beginning.
- C. Area Three: Lot 5 and the W. 51 feet of Lot 6, Block 163; Lot 5, Block 165; all of Block 208; Lots 1 through 4, and Lot 6, Block 209; that portion of Block 210 as described in Warranty Deed recorded in Book 2864, Page 772 in the Office of the Laramie County Clerk situate North and East of the railroad spur line; and all adjacent public rights of way to said parcels; all in the Original City of Cheyenne.

Section 2. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 3. That this ordinance shall be in full force and effect upon approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune Eagle



STAFF REPORT

Proposal: Downtown Development District Expansion
Location: Mead Triangle
Date: August 8, 2024
Staff Contact: Charles Bloom, Director of Planning and Development
Kylie Dorr, DDA Administrator

Recommended Motion:

Move to approve the petitions for the inclusion of the following properties in the Downtown Development District:

- Laramie County Property ID Number 14663133100600 (Commonly known as the Mead Triangle)
- Laramie County Property ID Number 14663131201000 (St. Mary's School parking area Northwest of 23rd and Bent Avenue)
- Laramie County Property ID Number 14663132200100 (St. Mary's School / 2200 O'Neil Avenue)
- Laramie County Property ID Number 14663132000800 (822 W. 23rd Street)
- Laramie County Property ID Number 14663132100400 (718 W. 22nd Street)

And forward this on to the Governing Body to consider amending the Downtown Development District to include these properties and all adjacent rights-of-way.

Background:

Over the course of the few months staff received interest from HCH Holdings, LLC (HCH) for inclusion of property within the Downtown Development District. The Governing Body authorized Mayor to submit a petition for inclusion of property southwest of 23rd Street and Bent Avenue, commonly referred to as the Mead Triangle, to apply for inclusion in the Downtown Development District (Resolution No. 6419, July 22, 2024). Without City participation, HCH's properties would not be contiguous and would not be eligible for inclusion in the district.

Upon approval of the resolution by the City and receipt of the petition from HCH Holdings, LLC, staff mailed letters to all property owners adjacent to those parcels inviting them to petition concurrently as well. Letters were mailed on July 16, 2024, informing property owners that they could also petition to be included in the expansion effort and informed them of the requirement to pay into the mill levy to be in the district for non-exclusively residential properties. Responses were received from three property owners: Bill Haley, BTW LLC (Dave Teubner), and St. Mary's School.

If the Downtown Development Authority Board approves the addition of the five parcels to the district, the request will be sent to the Governing Body for final consideration and amendment to the Downtown

Development District boundary. The Downtown Development District is described in section 2.76.040 of the municipal code.

The procedure for inclusion of additional land in the district is outlined in Wyoming Statute § 15-9-223 which reads as follows:

“15-9-223. Inclusion of additional property into development area; procedure.

Subsequent to the organization of an authority, additional property may be included in the development area. Proceedings for inclusion shall be initiated by petition to the board of the authority signed by the owner or owners in fee of each parcel of land adjacent to the existing area sought to be included. The petition shall include evidence satisfactory to the board concerning title to the property and an accurate legal description thereof. If the board approves the application, it shall submit the application to the governing body of the municipality. If the governing body also approves the application, it shall then, at a regular or special meeting, by amendment to the ordinance treating the authority, redescribe the development area so as to include the additional property as described in the petition. From the effective date of the amendment the additional property shall be included within the development area and shall be subject to any taxes thereafter imposed by the municipality for the use and benefit of the authority.”

With the redescription of the Downtown Development District, staff intends to draft a legal description including all adjacent rights-of-way to the existing district and added properties. This would include all adjacent rights-of-way including but not limited to House Avenue, Central Avenue on the South Side, etc. This would allow DDA funds to be used on infrastructure improvements within the adjacent rights-of-way.

Governing Body Review Schedule:

This item is considered in the form of an ordinance amending the municipal code to redescribe the Downtown Development District area. This requires three readings by the Governing Body and referral to Finance Committee twice.

- Governing Body introduction of the vacation and expansion request: August 12th at 6:00 pm in Council Chambers.
- Council Committee: August 19th at noon at the City Building, room 104.
- Second Reading: August 26th at 6:00 pm in Council Chambers.
- Council Committee: September 3rd at noon at the City Building, room 104.
- Final Reading: September 9th at 6:00 pm in Council Chambers.

Impact and Benefits:

Inclusion of these properties can stimulate economic activities, attract new businesses, and create jobs within the expanded district. The expansion can lead to infrastructure upgrades that the DDA can help fund through the Capital Improvement Grant, enhancing the area's overall functionality and appeal. The inclusion supports the DDA's goal of fostering a vibrant downtown community, contributing to a cohesive and thriving urban environment. Expanding the district aligns with the long-term strategic vision, promoting orderly and planned development.

Conclusion:

Based on the considerations above, it is recommended that the Downtown Development Authority Board approves the petition to expand the Downtown Development District to include the requested properties in the district.

Staff Recommendation:

Staff recommends the Downtown Development Authority approve the petitions for the inclusion of the following properties in the Downtown Development District:

- Laramie County Property ID Number 14663133100600 (Commonly known as the Mead Triangle)
- Laramie County Property ID Number 14663131201000 (St. Mary's School parking area Northwest of 23rd and Bent Avenue)
- Laramie County Property ID Number 14663132200100 (St. Mary's School / 2200 O'Neil Avenue)
- Laramie County Property ID Number 14663132000800 (822 W. 23rd Street)
- Laramie County Property ID Number 14663132100400 (718 W. 22nd Street)

Attachments:

1. Proposed expansion maps
2. City of Cheyenne Petition
3. HCH Holdings, LLC Petition
4. St. Mary's School Petition
5. BTW, LLC – Dave Teubner Petition
6. Bill Haley Petition



Downtown Development Authority

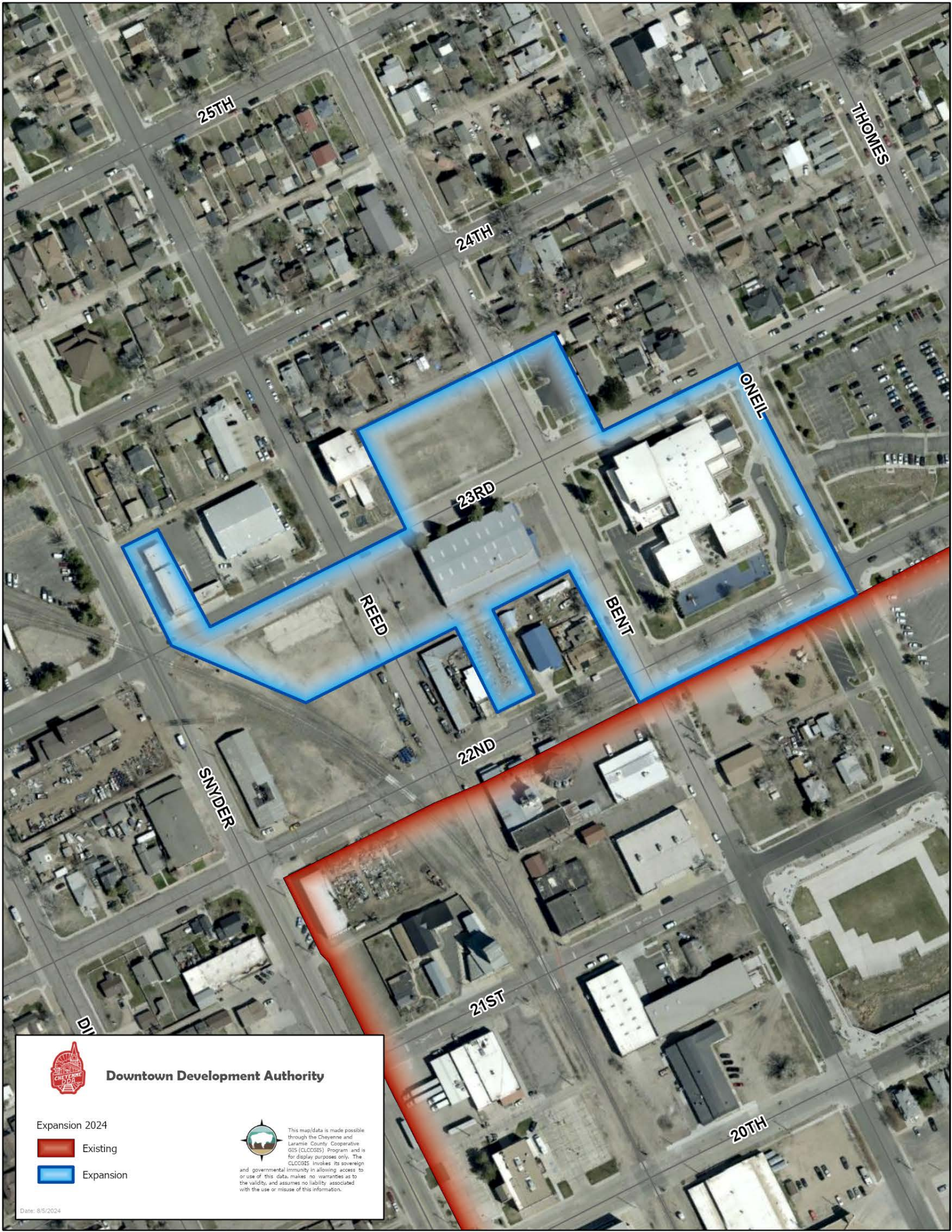
Expansion 2024

 Existing

 Expansion



This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS involves its sovereign and governmental immunity in allowing access to or use of this data makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.



Downtown Development Authority

Expansion 2024

 Existing

 Expansion



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RESOLUTION NO. 6419

ENTITLED: "A RESOLUTION EXPRESSING THE SUPPORT OF THE GOVERNING BODY FOR THE SUBMISSION OF A PETITION BY THE GOVERNING BODY TO THE DOWNTOWN DEVELOPMENT AUTHORITY FOR INCLUSION OF PROPERTY IN THE DOWNTOWN DEVELOPMENT DISTRICT."

WHEREAS, on July 9, 1984, the Governing Body approved Ordinance No. 2804 creating the Downtown Development Authority (herein referred to as "Authority") and Downtown Development District (herein referred to as "District");

WHEREAS, the City is owner of real property situated at 813 West 23rd Street, Cheyenne, Laramie County, Wyoming (herein referred to as "Property") comprising of point seventy acres (.70) more particularly described as:

CHEYENNE: TWO TRACTS OF LAND BEING A PORTION OF LOTS 1 – 4 AND 7 - 8, BLOCK 210, ORIGINAL CITY, DESC AS: BEG AT THE NORTHEAST CORNER OF SAID BLOCK 210, THENCE S 26 DEG 38' 52" E., ALONG THE EAST LINE OF SAID BLOCK 210, A DISTANCE OF 132.15' TO THE NORTH LINE OF THE ALLEY IN SAID BLOCK 210; THENCE S 63 DEG 33' 05" W., ALONG SAID NORTH LINE, A DISTANCE OF 114.17' TO THE BEGINNING OF A NON-TANGENTIAL CURVE TO THE LEFT; THENCE ALONG SAID CURVE THROUGH AN ANGLE OF 07 DEG 32' 56", A RADIUS OF 1042.30 FEET, AND WHOSE LONG CHORD BEARS N 65 DEG 27' 32" W., A DISTANCE OF 137.22 FEET; THENCE N 69 DEG 14' 00" W., A DISTANCE OF 34.53' TO THE NORTH LINE OF SAID BLOCK 210; THENCE N 63 DEG 30' 23" E., ALONG SAID NORTH LINE, A DISTANCE OF 223.54' TO THE POINT OF BEGINNING. AND: BEG AT THE SOUTHEAST CORNER OF SAID BLOCK 210, THENCE S 63 DEG 35' 46" W., ALONG THE SOUTH LINE OF SAID BLOCK 210, A DISTANCE OF 27.42' TO THE BEGINNING OF A NON-TANGENTIAL CURVE TO THE LEFT; THENCE ALONG SAID CURVE THROUGH AN ANGLE OF 08 DEG 23' 29", A RADIUS OF 1042.30 FEET, AND WHOSE LONG CHORD BEARS N 56 DEG 25' 08" W., A DISTANCE OF 152.52' TO THE SOUTH LINE OF THE ALLEY IN SAID BLOCK 210; THENCE N 63 DEG 33' 05"E., ALONG SAID SOUTH LINE, A DISTANCE OF 103.15' TO THE EAST LINE OF SAID BLOCK 210; THENCE S 26 DEG 38' 52" E., ALONG SAID EAST LINE, A DISTANCE OF 132.15' TO THE POINT OF BEGINNING;

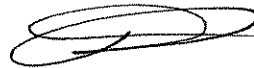
WHEREAS, in accordance with Wyoming Statute § 15-9-223, subsequent to the organization of an Authority, additional property may be included in the development area provided the owner or owners in fee of each parcel of land adjacent to the existing District petition the Downtown Development Authority Board (herein referred to as "Board") to be included in the District;

WHEREAS, landowners adjacent to the Property have expressed interest in petitioning to be within the District but are prevented due to lack of contiguity with the District;

WHEREAS, it is the desire of the Governing Body to include this land in the District to increase opportunity for property owners adjacent to the Property;

NOW, THEREFORE, BE IT RESOLVED, that the Governing Body of the City of Cheyenne supports the Mayor executing and filing a Petition to be considered by the Board for inclusion of the Property and adjacent right-of-way in the District on behalf of the City of Cheyenne.

PRESENTED, READ AND ADOPTED this 22nd day of July, 2024.



Patrick Collins, Mayor

(SEAL)

ATTEST:



Kristina F. Jones, City Clerk

Approved as to
form only: *Stefanie Boote*

Date: 8/6/24

Subject: Request to Include Property in DDA District Expansion

To Whom It May Concern,

The City of Cheyenne, the owner of the property located at 813 West 23rd Street, Cheyenne, Laramie County, Wyoming, hereby request the inclusion of my property in the proposed Downtown Development Authority District expansion scheduled for August 2024.

I understand the benefits and responsibilities associated with being part of the DDA District, including the requirement of business property owners to pay into the mill levy tax. I consent to the necessary steps being taken to formalize this inclusion.

CITY OF CHEYENNE, WYOMING

BY:



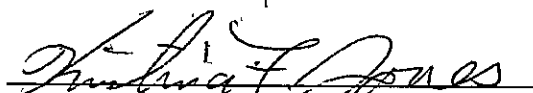
Patrick Collins, Mayor

8-5-24

Date

(SEAL)

ATTEST:



Kristina F. Jones, City Clerk

Please ensure that the form letter is completed and returned via email, mail, or in person.

HCH Holdings, LLC

Stephen Fotiades

CEO

2222 Bent Ave.

Unit A

Cheyenne, WY 82001

307-433-4610

Fotiades87@gmail.com

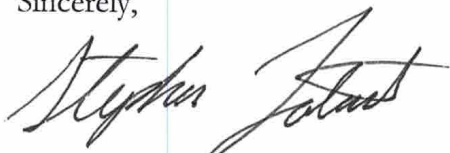
7/16/2024

To whom it may concern,

I wanted to send a formal letter to the DDA expressing my interest in becoming a part of the Downtown Development Authority.

Currently I own two properties in downtown Cheyenne. The first property is 2222 Bent Ave. and the second is 2300 W. 23rd St. Please let this letter serve as formal notice. Should you need anything else from me to move forward with this request let me know.

Sincerely,

A handwritten signature in black ink, appearing to read "Stephen Fotiades", with a stylized, flowing script.

Stephen Fotiades

Enclosures (1): Authorization Form Letter

Church of St. Mary
PO Box 1268
Cheyenne, WY 82003-1268

[Date]

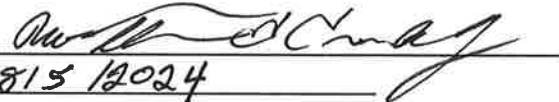
Subject: Request to Include Property in DDA District Expansion

To Whom It May Concern,

I, Rev Thomas E Cronkleton, ^{pastor of the Church of St Mary and corporation secretary/treasurer of the corporation} the owner of the property located at St. Mary's Catholic School at 2200 O'Neil Ave. and its assets of the playground and parking lot south of the school on 22 St., as well as the parking lot on 23 and Bent.

The Church of St Mary, owner of St Mary's Catholic School, hereby request the inclusion of my property in the proposed Downtown Development Authority District expansion scheduled for August 2024.

I understand the benefits and responsibilities associated with being part of the DDA District, including the requirement of business property owners to pay into the mill levy tax. I consent to the necessary steps being taken to formalize this inclusion.

Signature: 
Date: 8/5/2024

Please ensure that the form letter is completed and returned via email, mail, or in person by next **Friday, July 26, 2024.**

BTW LLC
7545 Jessica Dr.
Cheyenne, WY 82009

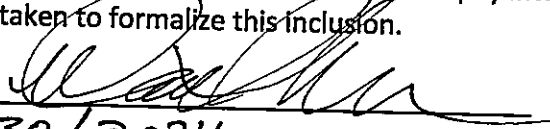
[Date]

Subject: Request to Include Property in DDA District Expansion

To Whom It May Concern,

I, DAVE TEUBNER, the owner of the property located at
822 W 23RD STREET, hereby request the inclusion of my property in the proposed
Downtown Development Authority District expansion scheduled for August 2024.

I understand the benefits and responsibilities associated with being part of the DDA District, including
the requirement of business property owners to pay into the mill levy tax. I consent to the necessary
steps being taken to formalize this inclusion.

Signature: 

Date: 7/30/2024

Please ensure that the form letter is completed and returned via email, mail, or in person by next
Friday, July 26, 2024.

William Powell Haley
608 W 21 St
Cheyenne, WY 82001

[Date]

Subject: Request to Include Property in DDA District Expansion

To Whom It May Concern,

I, William Powell Haley, the owner of the property located at
718 West 22nd, hereby request the inclusion of my property in the proposed
Downtown Development Authority District expansion scheduled for August 2024.

I understand the benefits and responsibilities associated with being part of the DDA District, including the requirement of business property owners to pay into the mill levy tax. I consent to the necessary steps being taken to formalize this inclusion.

Signature:

Date:

William Powell Haley
July 22, 2024

Please ensure that the form letter is completed and returned via email, mail, or in person by next **Friday, July 26, 2024.**